

25PSCV00049 25PSCV00049

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-08-21

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Case Number: 25PSCV00049 Hearing Date: August 21, 2026 Dept: H

Munoz., et al v.

Munoz., Case No. 25PSCV00049

ORDER ON MOTION

TO BE RELIEVED AS COUNSEL

Counsel for Defendant Mercedes

Munoz's (i.e., Aniko Felsen's) Motion to be Relieved as Counsel is GRANTED, effective upon the filing of the proof of service reflecting service of the signed

order upon the Client at the Client's last known address.

Background

Plaintiffs Norma Munoz and Ruben Munoz

("Plaintiffs") allegedly entered into a series of written agreements with

Defendant Mercedes Munoz ("Defendant") to purchase real property from the

Defendant and for Defendant to convert the garage to a guest house.

On January 7, 2025, Plaintiffs filed a complaint

asserting causes of action against Defendant, and Does 1-20 for: (1) Breach of

Written Agreement, (2) Breach of Covenant of Good Faith and Fair Dealing, (3) Fraud

in the Inducement, and (4) Unjust enrichment.

A Case Management Conference is

set for October 21, 2026.

Discussion

Aniko

Felsen seeks to be relieved as counsel of record for Defendant ("Client").

California Rule of Court ("CRC") Rule 3.1362

requires (1) a notice of motion and motion directed to the client (made on the Notice of Motion and Motion to Be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure § 284(2) is brought instead of filing a consent under section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion, the declaration, and the proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)). The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.

The Court determines that the requirements of Rules of Court rule 3.1362 enumerated above have been sufficiently met. Moving counsel has filed all three required forms (MC-051, -052, and -053), as well as a proof of service indicating that all forms were served on the opposing parties and Client.

Accordingly, the motion to be relieved as counsel is GRANTED, effective upon the filing of the proof of service reflecting service of the signed order upon the Client at the Client's last known address.

In

light of the Court's ruling, the Court takes off calendar the hearing on the separately filed motion to be relieved as counsel that was calendared for 8/26/26 (and also was filed by Aniko Felsen as to Client), as that motion is now moot. [FN]

[FN] As the Court will address at the hearing, the email and text communications attached to the declaration in support of that separately filed motion to be relieved as counsel are very concerning; while the Court does not know the source of those communications,

given the violent threats made therein, the communications have been reported to court security.